

Marketing and Creative Services Agreement

Contract ID: CNT-2025-0089

Date: February 10, 2025

Between: Meridian Holdings Group ("Client") and Spark & Flame Creative Agency ("Agency")

1. Engagement Overview

The Client engages the Agency to provide comprehensive marketing and creative services including brand strategy, digital marketing campaigns, content creation, social media management, and event marketing support.

2. Scope of Services

2.1 Brand and Creative Services

- Brand identity development and refinement
- Visual design and creative direction
- Marketing collateral design (brochures, presentations, infographics)
- Video production and photography
- Website design and UX optimization

2.2 Digital Marketing Services

- Search engine optimization (SEO) and search engine marketing (SEM)
- Social media strategy and content management
- Email marketing campaign design and execution
- Pay-per-click (PPC) advertising management
- Analytics and performance reporting

2.3 Campaign Services

- Integrated marketing campaign planning and execution
- Market research and competitive analysis
- Product launch support
- Trade show and event marketing materials
- Influencer identification and partnership management

2.4 Data and Analytics

To perform the services effectively, the Agency will require access to:

- Customer demographic and behavioral data
- Sales and revenue data by segment
- Website analytics and user tracking data
- CRM data including customer contact information and purchase history
- Social media account credentials and analytics

The Agency will use this data solely for the purpose of providing marketing services and generating campaign insights.

3. Term and Renewal

3.1 Initial Term

This agreement has an initial term of 2 years commencing on the date of execution.

3.2 Renewal

The agreement will automatically renew for additional 1-year terms unless either party provides 60 days written notice of non-renewal prior to the end of the current term.

4. Fees and Payment

4.1 Monthly Retainer

The Client shall pay a monthly retainer of \$85,000 for the core services described in Section 2.

4.2 Project-Based Fees

Additional project work outside the retainer scope will be quoted on a project basis and approved via written change order before work commences.

4.3 Media Spend

Media buying and advertising spend is in addition to the retainer and project fees. The Agency receives a 15% commission on all media placed.

4.4 Payment Terms

All invoices are payable within Net 30 days of receipt. The Agency reserves the right to pause services if payment is overdue by more than 45 days.

5. Creative Development Process

5.1 Briefing

The Client will provide a detailed creative brief for each campaign or project. The Agency will present initial concepts within 10 business days of receiving an approved brief.

5.2 Review Cycles

Each deliverable includes up to 3 rounds of revisions. Additional revision rounds will be billed at the Agency's hourly rate of \$250/hour.

5.3 Approvals

All creative materials must receive written approval from the Client's designated marketing contact before publication or distribution.

6. Intellectual Property

6.1 Work Product

The Agency grants the Client a non-exclusive, worldwide license to use all creative materials produced under this agreement for the Client's marketing purposes.

6.2 Agency Portfolio

The Agency retains the right to showcase work created for the Client in the Agency's portfolio, case studies, and award submissions.

6.3 Third-Party Materials

The Agency may incorporate stock photography, fonts, and other third-party materials into creative deliverables. License fees for third-party materials are included in project fees unless otherwise specified.

6.4 Pre-Existing Materials

The Agency retains ownership of all pre-existing tools, templates, methodologies, and frameworks used in delivering services. The Client receives a license to use these materials only in connection with the deliverables.

7. Client Responsibilities

The Client shall:

- a) Provide timely feedback and approvals (within 5 business days unless otherwise agreed)
- b) Designate a primary point of contact for day-to-day communication
- c) Provide brand guidelines, logos, and other brand assets
- d) Provide access to necessary data and systems
- e) Ensure all information provided to the Agency is accurate and current

8. Performance Metrics

8.1 Reporting

The Agency will provide monthly performance reports including:

- Campaign performance metrics (impressions, clicks, conversions)
- Social media engagement and growth metrics
- Website traffic and SEO performance
- Media spend and ROI analysis
- Recommendations for optimization

8.2 Quarterly Business Reviews

The Agency and Client will conduct quarterly business reviews to assess performance, discuss strategy, and plan upcoming initiatives.

9. Gifts and Hospitality

The Agency may extend invitations to the Client's team for industry events, conferences, and entertainment activities as part of the business relationship. The value of such hospitality shall not exceed \$5,000 per person per year. The Agency may also provide seasonal gifts to key Client contacts.

10. Termination

10.1 Termination for Convenience

Either party may terminate this agreement with 90 days written notice. Upon termination, the Client shall pay for all work completed and any non-cancellable commitments made on the Client's behalf.

10.2 Termination for Cause

Either party may terminate immediately upon material breach that remains uncured for 30 days after written notice.

10.3 Transition

Upon termination, the Agency will provide transition support for 30 days including transfer of campaign assets, account credentials, and knowledge transfer sessions.

11. Indemnification

Each party shall indemnify the other against third-party claims arising from the indemnifying party's breach of this agreement or negligence.

12. Limitation of Liability

Each party's total liability shall not exceed the total fees paid under this agreement in the 12 months preceding the claim. Neither party shall be liable for indirect, consequential, or punitive damages.

13. Non-Solicitation

During the term of this agreement and for 12 months thereafter, neither party shall solicit or hire employees of the other party who were involved in the performance of services under this agreement.

14. General Provisions

14.1 Governing Law

This agreement is governed by the laws of the State of New York.

14.2 Independent Contractor

The Agency is an independent contractor. Nothing in this agreement creates an employment, partnership, or joint venture relationship.

14.3 Insurance

The Agency maintains commercial general liability insurance of \$1,000,000 per occurrence and professional liability insurance of \$2,000,000 per claim.

14.4 Entire Agreement

This agreement, together with any executed change orders, constitutes the entire agreement between the parties.

IN WITNESS WHEREOF, the parties have executed this agreement as of the date first written above.

For Meridian Holdings Group

For Spark & Flame Creative Agency